



CHAPTER li.

An Act to confer further powers upon the United Kingdom Temperance and General Provident Institution and for other purposes. A.D. 1930.

[15th April 1930.]

WHEREAS the United Kingdom Temperance and General Provident Institution (hereinafter called "the Institution") was originally established and enrolled in the year one thousand eight hundred and forty under the laws then in force relating to friendly societies with the object of raising by subscriptions amongst the members thereof a fund for the mutual benefit of such members and to grant make or effect all such assurances on lives survivorships contingencies and events dependent on or connected with life or otherwise as might by law be made or effected and generally to transact all descriptions of business ordinarily transacted by life assurance companies or known as life assurance business :

And whereas by the United Kingdom Temperance and General Provident Institution Act 1909 (hereinafter called "the Act of 1909") the Institution was incorporated with the objects and powers therein set forth and the previously existing rules of the Institution were repealed and it was provided that the Institution should cease to be under or subject to the Friendly Societies Acts as therein defined :

And whereas the business of the Institution has greatly increased and is still increasing and the funds

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A.D. 1930. — thereof which at the passing of the Act of 1909 amounted to about eight million eight hundred thousand pounds now amount to over seventeen million five hundred thousand pounds :

And whereas the Institution has experienced difficulties in obtaining suitable investments for the funds thereof returning adequate rates of interest within the powers of investment conferred by the Act of 1909 and it is expedient that such powers of investment should be varied and extended :

And whereas it is expedient that further and better provision should be made for facilitating amalgamation between the Institution and other institutions societies associations corporations companies or bodies carrying on any business or undertaking within the objects of the Institution and the acquisition by the Institution of all or any of the business property rights and liabilities of or any interest in any such other institution society association corporation company or body :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1.—(1) This Act may be cited as the United Kingdom Temperance and General Provident Institution Act 1930.

(2) The Act of 1909 and this Act may be cited together as the United Kingdom Temperance and General Provident Institution Acts 1909 and 1930.

Interpreta-
tion.

2. In this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say) :—

“The Institution” means the United Kingdom Temperance and General Provident Institution ;

“The Act of 1909” means the United Kingdom Temperance and General Provident Institution Act 1909 ;

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“ The directors ” means the directors for the time being of the Institution ; A.D. 1930.

“ Existing ” means existing immediately before the passing of this Act.

3.—(1) In this section if and so far as the context admits the word “ purchase ” shall include acquisition by subscription allotment tender underwriting exchange partition or otherwise. Investment of Institution's funds.

(2) The funds of the Institution so far as they are not required to satisfy the immediate claims and expenses of the Institution may be laid out and invested by the directors in the name or under the control of the Institution or in any case in which the directors consider such a course advisable or necessary in the names of trustees for the Institution—

(a) In the purchase of any of the public stocks or funds or Government securities of the United Kingdom or India or any British dominion colony dependency state or province or any foreign country state or province ;

(b) In the purchase of lands buildings or hereditaments or any interest therein or rights connected therewith whether in the United Kingdom or elsewhere ;

(c) In the purchase of ground rents head rents chief rents feu duties ground annuals rent-charges or any other kind of rents or income arising out of or charged on lands whether in the United Kingdom or elsewhere ;

(d) In the purchase of stocks funds shares debentures debenture stock mortgages or securities of any corporation body or company municipal county local commercial or of any other description whatsoever in the United Kingdom or India or any British dominion colony dependency state or province or any foreign country state or province ;

(e) In the purchase of mortgages charges annuities liens or incumbrances affecting any property on which the Institution has power to lend ;

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- (f) In the purchase of policies annuities or contracts of any kind issued granted or made by the Institution or in respect of which it is under any liability or issued granted or made by any other assurance office;
- (g) In the purchase of life reversionary or other interests whether absolute contingent or expectant in property of any kind whether determinable or not;
- (h) In the purchase of any other property or security real or personal movable or immovable and wheresoever situated which the directors may think fit to acquire;
- (i) Or on the security of any of the foregoing;
- (j) Or on the personal liability of the borrower fortified by any such security as is referred to in the last preceding paragraph or by the guarantee covenant or obligation of any person company society institution authority body or government whether as sureties or otherwise;
- (k) Or on deposit on such terms as the directors may think proper and whether temporarily or for any length of time with any public body corporation commissioners board trust or local authority authorised to take money on deposit or with any bank or banking financial or discount company or institution or any building society;
- (l) Or in such other (if any) investments as are for the time being authorised by law for the investment of trust funds.

(3) The directors may join with any other institution society association corporation company or other body or any persons in making any such investment as aforesaid and any investment so jointly made may be held in the names of either all or any one or more of the parties joining in the investment or in the names of trustees for all the parties so joining.

(4) The directors shall have power at their discretion to vary any investments including the existing investments of the Institution for others of the kinds hereinbefore authorised.

(5) Provided always that no investment shall be made in which trustees are not for the time being authorised by law to invest trust funds unless the previous consent of not less than five of the directors present at a meeting of the directors shall have been given to such investment but this provision shall not concern any person purchasing any property from the Institution or advancing any money to the Institution on the security of any property and any such person shall have no right or duty to inquire as to its due fulfilment. A.D. 1930.

(6) Provided also that nothing herein contained shall be held to empower the directors to invest any parts of the funds of the Institution in the purchase of or on the security of any stocks shares or securities the ownership of which would involve the Institution in any liability for calls contributions or investments except calls contributions or investments made or determined prior to such investment and payable at specified fixed dates.

(7) Provided also that all or any of the existing investments of the Institution may be retained during such period as the directors think fit and should any institution society association corporation company or other body be purchased acquired or taken over by the Institution the directors shall have power to retain and hold any stocks securities or properties in which the institution society association corporation company or other body so purchased acquired or taken over has its funds invested at the time it is purchased acquired or taken over.

(8) Any person for the time being holding any property or investment as a trustee for the Institution shall with regard thereto act in all respects under and in accordance with the directions of the directors of the Institution.

(9) Section 21 (Investment of Institution's funds) of the Act of 1909 is hereby repealed.

4. In section 4 (Objects of Institution) of the Act of 1909 for the words "To enter into and carry into effect any contract or agreement for purchasing acquiring or taking over all or any of the business property rights and liabilities of any other society association or company carrying on any business within the Amalgamation and acquisition of businesses or interests therein.

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A.D. 1930. “ objects of the Institution or for undertaking paying and
“ performing all or any of the assurances annuities and
“ engagements of any such other society association or
“ company ” there shall be substituted the words “ Sub-
“ ject to any statutory provisions for the time being in
“ force relating to the amalgamation of assurance com-
“ panies or the transfer of the business of one such
“ company to another to enter into and carry into effect
“ any contract or agreement for purchasing acquiring
“ or taking over all or any of the business property
“ rights and liabilities of or amalgamating with or
“ acquiring any interest in any other institution society
“ association corporation company or other body carrying
“ on any business or undertaking within the objects for
“ the time being of the Institution or for undertaking
“ paying and performing all or any of the assurances
“ annuities and engagements of any such other institu-
“ tion society association corporation company or body.”

Saving for
general
Acts.

5. Nothing in this Act shall be deemed to exempt the Institution from the provisions of the Assurance Companies Act 1909 or of any general Act passed during the present or any future session of Parliament affecting assurance companies formed previously to the passing thereof.

Costs of
Act.

6. The costs charges and expenses preliminary to and of and incidental to preparing obtaining and passing this Act shall be paid by the Institution.

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